

June, 1859, Morton became bankrupt, the plaintiffs' acceptance remaining [521] in his hands unnegotiated. The assignees took possession of the bill, and paid it into the Bank of England to the credit of the accountant in bankruptcy, for the estate of the bankrupt: and the bill was presented to the plaintiffs' bankers at maturity (July, 1859), and paid by them, the plaintiff being in ignorance of the fact of its having remained in Morton's hands unnegotiated. The account sales of the shipment were received from Melbourne in March, 1860, shewing that the bankrupt's estate had been overpaid to the extent of 269l. 4s. 6d. Under these circumstances, it is submitted, that, inasmuch as Morton himself, if no bankruptcy had supervened, would not have been entitled to claim from the plaintiffs payment of the whole sum of 600l., his assignees could be in no better position. [Williams, J. An acceptance of a bill against a consignment is in effect an advance of so much money upon the goods.] That will, no doubt, be the argument upon the other side. [Willes, J. It is not unusual in these cases to stipulate for a renewal of the bills provided the goods remain unsold when the bills arrive at maturity. We cannot, however, assume that there was any such stipulation here, the case being silent on the subject.]

Hannen, *contra* (a), was stopped by the court.

[522] ERLE, C. J. I am of opinion that the defendants are entitled to judgment. The plaintiffs gave Morton, the bankrupt, their acceptance for 600l. upon the faith of a consignment made through them to their correspondents abroad, with an understanding that this advance was to be repaid out of the proceeds of the goods consigned, any deficiency to be made good by Morton. The plaintiffs paid their acceptance at maturity. Suppose an action had been brought against them by the assignees to recover the amount of the bill, is there any plea which the now plaintiffs could have pleaded in bar of the assignees' claim against them on the bill? It seems to me that there is not. It follows, therefore, that the assignees had a right to receive the fund, and that the plaintiffs have no right to recover back any portion of it in this action.

The rest of the court concurring,
Judgment for the defendants.

[523] KEMP v. NEVILLE. June 12th, 1861.

[S. C. 31 L. J. C. P. 158; 4 L. T. 640; 7 Jur. N. S. 913; 10 W. R. 6 (sub nom. *Ebon v. Neville*). Adopted, *Wildes v. Russell*, 1866, L. R. 1 C. P. 741. See *R. v. Williams*, 1866, 15 L. T. 290; *R. v. Maidenhead Corporation*, 1882, 8 Q. B. D. 352; 9 Q. B. D. 494; *Haggard v. Pelicier*, [1892] A. C. 66.]

A judicial officer is not liable to be sued for an adjudication according to the best of his judgment upon a matter within his jurisdiction: and a matter of fact so adjudicated by him cannot be put in issue in an action against him. —To an action against the vice-chancellor of the university of Cambridge for assaulting the plaintiff, a

(a) The points marked for argument on the part of the defendants were as follows:—

"1. That, upon the facts stated, it does not appear that the defendants are liable to pay to the plaintiffs the sum sought to be recovered, or any part of it.

"2. That the plaintiffs were bound to pay their acceptance for 600l. at maturity, whether in the hands of the bankrupt's assignees or indorsees for value, and that nothing has subsequently occurred to make the defendants liable to refund that which they were at the time entitled to receive:

"3. That, if the plaintiffs were not liable to pay the whole amount of the bill at maturity to the defendants, their exemption from such liability must arise from a right of set-off or mutual credit, and that, by not availing themselves of it at the time, the plaintiffs have lost that remedy, and must prove against the bankrupt's estate:

"4. That, if the true nature of the contract between the bankrupt and the plaintiffs was, that the bankrupt should indemnify the plaintiffs against the consequence of accepting the bill of exchange in the event of the proceeds of the sale of the goods proving insufficient, the plaintiffs would have no right of action against the defendants, but the bankrupt still remains liable to the plaintiffs upon such contract of indemnity:

"5. That, in no case can the action be maintained against the official assignee, the bill having been paid into the Bank of England to the credit of the accountant in bankruptcy, for the estate of the bankrupt."